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County: los-angeles

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Case Number: 22AVCV00152 Hearing Date: July 9, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MARISELA SALAZAR; MELISSA SALAZAR,

Plaintiffs,

v.

COUNTY OF LOS ANGELES, a public entity, GILBERTO BORRUEL, and DOES 1 through 30, inclusive,

Defendants.

Case Number 22AVCV00152

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 9, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and property damage case arising from a motor vehicle accident.

On March 8, 2022, Plaintiffs Marisela Salazar (Marisela) and Melissa Salazar (Melissa) (together Plaintiffs) filed their complaint against Defendants County of Los Angeles (County), Gilberto Borrue!el, and DOEs 1 through 30, asserting causes of action for (1) motor vehicle personal injury and property damage and (2) general negligence.

Specifically, Plaintiffs allege that on July 9, 2020, Defendants' carelessly, negligently, and recklessly owned, operated, maintained, entrusted, and drove their vehicle in a manner which caused a collision with Plaintiffs' vehicle at the Sierra Highway and Avenue K intersection in Lancaster, California. (Compl., General Negligence Attachment.) Plaintiffs claim the impact of the collision caused bodily injuries to the Plaintiffs and damage to their vehicle. (Ibid.)

On November 29, 2022, the County filed its answer.

On May 19, 2023, Plaintiffs amended the complaint to substitute the name of Defendant Gilberto Borrue!el to the Defendant's correct name of "Steven John Jr Ament."

On May 15, 2024, Steven John Ament, Jr. (Ament) filed his answer.

On February 27, 2026, Plaintiffs filed their proposed joint witness list.

On June 5, 2026, the County and Ament (together Defendants) filed a motion for leave to augment their expert witness list to include three retained expert witnesses.

On June 23, 2026, Defendants filed a notice of errata concerning Defendants' motion for leave to augment, along with a corrected copy of the motion and declaration of Nyasha A. Buchongo (Buchongo) to correct the description of Exhibits B, C, and D, and to correct the name of the judicial officer from Hon. Stephen Morgan to Hon. William H. Forman.

On June 29, 2026, Plaintiffs filed their opposition.

On July 1, 2026, Defendants filed their reply.

II. Preliminary Procedural Issues

Timeliness of Plaintiffs' Opposition – An opposition to a motion is due at least nine court days before the hearing date. (Code Civ. Proc., § 1005, subd. (b).) The hearing on the present motion is set for July 9, 2026. Thus, Plaintiffs' opposition was due on or before June 25th, but was not filed until June 29, 2026.

Accordingly, Plaintiffs' opposition is untimely. However, given the timely and substantive reply filed by Defendants, and in the absence of any prejudice to Defendant, the Court will exercise its discretion and consider the opposition.

Meet and Confer Requirement – A motion for augmentation of an expert witness list must be accompanied by a meet and confer declaration stating facts showing a reasonable and good faith attempt to informally resolve each issue presented by the motion in person, by telephone, or by videoconference. (Code Civ. Proc., §§ 2034.610, subd. (c), 2016.040, subd. (a).)

Here, Defendants offer the Declaration of Nyasha A. Buchongo (Buchongo Declaration), in which she states counsel for Defendants met and conferred with Plaintiffs' counsel over the phone multiple times before filing this motion. (Buchongo Decl., ¶ 11.) Defendants also provide email correspondence with Plaintiffs' counsel providing a proposed supplemental expert witness designation on June 2, 2026, which Plaintiffs' counsel stated they would not stipulate to. (Id at ¶ 10, Ex. D.)

The meet and confer requirement has been satisfied.

III. Legal Standard

Standard for Motion to Amend or Augment Expert Witness List – California Code of Civil Procedure section 2034.610, subdivision (a)(1) permits the Court, on motion of any party who has timely exchanged expert witness information, to grant leave to augment that party's expert witness list and declaration by adding the name and address of any expert witness subsequently retained by the party and amend that party's expert. This motion must be made at a sufficient time in advance of the time limit for completion of discovery to permit the deposition of the newly designated expert witness to be taken within that time limit, though the Court may permit the motion to be made at a later time under exceptional circumstances. (Code Civ. Proc., § 2034.610, subd. (b).) Pursuant to California Code of Civil Procedure section 2024.030, the cutoff date for discovery pertaining to expert witnesses is 15 days before the date initially set for trial.

Pursuant to California Code of Civil Procedure section 2034.620, the Court shall grant leave to augment an expert witness list only if all of the following conditions are satisfied:

(a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses.

(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined either of the following:¿

1. The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness.¿

2. The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:¿

A. Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.¿

B. Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.¿

(d) Leave to augment or amend is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

California Code of Civil Procedure section 2024.050, subd. (a) permits the Court to grant leave to complete discovery proceedings closer to the initial trial date or reopen discovery after a new trial date has been set on motion of any party. This motion must be accompanied by a meet and confer declaration as described above. (Code Civ. Proc., § 2024.050, subd. (a).) In granting or denying a motion for relief, the Court shall take into consideration any matter relevant to the leave requested, including, but not limited to, (1) the necessity and reasons for the discovery, (2) the diligence, or lack thereof, of the party seeking the discovery and the reasons that the discovery was not completed earlier, (3) any likelihood that permitting the discovery will prevent the case from going to trial on the date set or otherwise interfere with the trial calendar or result in prejudice to any other party, and (4) the length of time that has elapsed between any date previously set and the date presently set for trial. (Code Civ. Proc., § 2024.050, subd. (b).) The Court must impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to extend or reopen discovery, unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Id at subd. (c).)

IV. Discussion

Application – Pursuant to California Code of Civil Procedure sections 128, 2024.050, 2034.610, and 2034.620, Defendants request leave to augment their expert witness list to designate three additional expert witnesses, (1) David Alessi, an otolaryngologist, (2) David Weiner, an economist, and (3) Rhonda Renteria, a life care planner. (Notice of Motion, p. 2:1-3.) Defendants request relief on the grounds of mistake, inadvertence, surprise, or excusable neglect. (Motion, p. 4:12-13.)

The Court notes as a preliminary matter that Defendants timely exchanged expert witness information on January 9, 2025, designating only Dr. Mark Spoonamore, MD, orthopedic as an expert witness. (Buchongo Decl., Ex. A; Motion, p. 3:10-12.) Thus, Defendants satisfy this requirement to move the Court for their requested relief under California Code of Civil Procedure section 2034.610, subdivision (a)(1).

a. Timeliness of Motion and Expert Discovery Cut-Off

As established, Defendants' motion must be made at a sufficient time prior to the discovery completion deadline to permit the deposition of the newly designated expert witness to be taken prior to the deadline, and the Court may only permit the motion to be made at a later time under exceptional circumstances. (Code Civ. Proc., § 2034.610, subd. (b).)

Notably, the discovery cutoff for expert witnesses is 15 days before the date initially set for trial. (Code Civ. Proc., § 2024.030.)

The initial trial date in this action was March 13, 2026. On March 4, 2026, the Court continued the trial date to August 14, 2026, explicitly noting that no further continuances would be granted. (Minute Order dated March 4, 2026.) The Court did not extend the deadline for completion of discovery. As such, the deadline to complete discovery relating to expert witnesses was Thursday, February 26, 2026, 15 days before the initial trial date. Thus, Defendants are only permitted to bring this motion if (1) pursuant to California Code of Civil Procedure section 2034.610, subdivision (b), the Court finds exceptional circumstances for permitting the motion, or (2) the Court, on motion, grants leave to reopen discovery until July 31, 2026 pursuant to the new trial date of August 14, 2026.

i. Exceptional Circumstances

Where a party moves for leave to augment their expert witness list well after the close of expert witness discovery, the existence of exceptional circumstances is required for the party to be entitled to be making the motion at all. (Code Civ. Proc., § 2034.610, subd. (b); Cottini v. Enloe Medical Center (2014) 226 Cal.App.4th 401, 420.)

The Court does not find that exceptional circumstances exist which entitle Defendants to make the present motion. Defendants neglect to address how or why the present circumstances are “exceptional,” instead contending that the “need for expert augmentation resulted from mistake, inadvertence, surprise, or excusable neglect.” (Reply, p. 4:2-3.) None of the circumstances put forth by Defendants are exceptional.

Defendants acknowledge that the parties mutually exchanged their expert witness designations on January 9, 2025, with Defendants identifying one expert witness and Plaintiffs identifying seven retained experts, including a chiropractor, a spine surgeon, a neurologist, a speech pathologist, a pain management doctor, a medical biller, and Khyber Zaffarkhan, DO, a qualified life care planner. (Motion, p. 3:10-16; Buchongo Decl., Exs. A, B.)

On January 22, 2026, Plaintiffs served their expert witness designation identifying six retained expert witnesses, including a spine surgeon, an orthopedic, a pain management specialist, Dr. Marc J. Kayem, M.D., an otolaryngologist, Charles R. Mahla, Ph.D., an economist, and two life care planners, Khyber Zaffarkhan, DO., and Brook Ferrick, RN, CCM, CLCP. (Motion, p. 3:17-19; Buchongo Decl., Ex. C.)

Defendants further acknowledge that any supplemental designation of Defendants’ expert witnesses was due within 20 days of Plaintiffs’ designation pursuant to California Code of Civil Procedure section 2034.280, rendering their supplemental designations due on or before February 11, 2026. (Motion, p. 3:20-21.) Defendants failed to supplementally designate any expert witnesses. However, Defendants argue that their failure to supplement their expert designations was due to inadvertence, mistake, surprise, or excusable neglect.

Defendants argue that Lillian C. Harwell (Harwell), former partner with Lewis Brisbois Bisgaard & Smith LLP, and former attorney of record for Defendants, left her employment with the firm on March 13, 2026, resulting in attorney Jay B. Lake (Lake) stepping in as trial counsel in place of Harwell. (Motion, p. 3:23-25.) Allegedly, only after stepping in and reviewing the file did Lake determine that Harwell should have supplemented the defense’s expert designation with an otolaryngologist, an economist, and a life care planner. (Motion, p. 3:26-27.)

Harwell states in her declaration that she reviewed Plaintiffs’ expert designation served on or about January 9, 2025, and her understanding is that Defendants should have supplemented their expert designation to address issues identified in Plaintiffs’ designation, which she failed to do. (Harwell Decl., ¶¶ 3-4.) Harwell’s declaration is puzzling. While she asserts that she did review the expert designation served on January 9, 2025, she also states that she relied on an associate to conduct the “detailed review” of the expert designation and associated case materials. . (Harwell Decl., ¶¶ 5-6.)

The Court finds that then-counsel of record Harwell’s reliance on an associate to advise her whether to designate additional experts is not an exceptional circumstance. Indeed, nothing in Harwell’s declaration suggests that this was outside her usual practice. When a lead lawyer declines to review critical documents – or to review them carefully -- and delegates those tasks instead to an associate, the lead lawyer should hardly be surprised when details are missed.

Additionally, the Court finds not only that no exceptional circumstances related to Defendants’ failure to promptly move for relief exist, but also that the reasons offered by Defendants lack merit and are contradicted, to some extent, by the record.

In reply to Plaintiffs’ opposition, Defendants state they delayed in moving for relief because, although Harwell’s employment with Defense counsel’s firm ended on March 13, 2026, Lake did not become aware of the expert witness issues until later, as Lake, “after assignment to the case, needed time to get up to speed on the new file, discover and understand the expert witness issues, analyze the legal issues, formulate a plan, consult with the client, and reach out to Ms. Harwell to try to obtain a declaration.” (Reply, p. 4:18-22.)

On March 2, 2026, the parties executed a joint stipulation to continue trial and trial-related deadlines due to trial attorney Jay B. Lake’s recent surgery and unavailability to attend trial for medical reasons. (Joint Stipulation dated March 4, 2026, ¶¶ 1, 3.) The Court notes that this stipulation makes no mention of recent association of Lake as trial counsel, nor of the necessity for

Lake to get up to speed on a newly assigned file with which he has no familiarity.

Furthermore, Defendants' designation of expert witnesses, which was served on Plaintiffs on January 9, 2025, lists Jay B. Lake as attorney for Defendants. (Buchongo Decl., ¶ 6, Ex. A.) All of Plaintiffs' trial documents, including their proposed joint witness list which designates as experts Brook Ferrick, RN, life care planner, Charles R. Mahla, economist, and Marc Kayem, M.D., otolaryngologist, were served on both Harwell and Lake on February 27, 2026.

Based on Lake's association and assignment as counsel in connection with this matter dating back to at least January 2025, the service of Plaintiffs' witness list on Lake on February 27, 2026, and the other circumstances as noted above, the Court does not find that Harwell's termination of employment with Defense counsel's firm and disassociation as counsel of record in this case present exceptional circumstances warranting the untimely filing of this motion.

ii. Leave to Reopen Discovery

While a court has discretion to hear a discovery motion after the discovery motion cutoff date, that discretion is governed by California Code of Civil Procedure section 2024.050, which requires courts to consider a number of established factors to determine whether to reopen discovery. (Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568, 1571.)

Defendants appear to move, pursuant to California Code of Civil Procedure section 2024.050, to reopen discovery pursuant to the new trial date of August 14, 2026. (Notice of Motion, p. 2:1.)

In granting or denying a motion to reopen discovery where a new trial date has been set, "the Court shall take into consideration any matter relevant to the leave requested, including, but not limited to, (1) the necessity and reasons for the discovery, (2) the diligence, or lack thereof, of the party seeking the discovery and the reasons that the discovery was not completed earlier, (3) any likelihood that permitting the discovery will prevent the case from going to trial on the date set or otherwise interfere with the trial calendar or result in prejudice to any other party, and (4) the length of time that has elapsed between any date previously set and the date presently set for trial. (Code Civ. Proc., § 2024.050, subd. (b).)

The Court notes that Defendants make no targeted argument in support of, or even addressing, extending the cutoff date for discovery. However, Defendants argue that they "will experience extreme significant harm without retained experts to counter the opinions of Plaintiffs' retained experts" and argue Defendants should not have to suffer for the mistake of their former counsel. (Motion, p. 4:20-21, 5:1.) In support of their argument that prejudice will result to Defendants if their motion is denied, Defendants rely on *Du-All Safety, LLC v. Superior Court* (2019) 34 Cal.App.5th 485, 500 to support the proposition that forcing a defendant to defend against the testimony of a plaintiff's expert witnesses without experts of its own could be said to eviscerate its defense to the extent of the issues on which the experts would testify. (Motion, p. 4:24-26.) However, *Du-All* is readily distinguishable, as the *Du-All* defendants timely disclosed their supplemental expert witnesses and complied with all discovery statutes, which were then inappropriately excluded by the trial court. (*Du-All Safety*, supra, 34 Cal.App.5th at 497.) Here, the Court is faced with the opposite scenario.

As discussed above, the Court finds that Defendants have not been diligent in seeking to amend their expert witness list, nor is the Court convinced of the reasons offered for the delay in so moving. Furthermore, Defendants have been on notice since at least January of this year of the expert witnesses offered by Plaintiffs and failed to make any motion for almost six months. This case was filed over four years ago, and Defendants have had significant time to analyze the injuries, arguments, and medical damages allegedly suffered by Plaintiffs to appropriately identify and designate expert witnesses within the discovery period as Plaintiffs have.

The Court also finds that Plaintiffs will be prejudiced in granting leave to augment. Plaintiffs assert that they relied upon Defendants' designation of one expert witness to prepare their case, conduct discovery, and develop trial strategy, that a designation of three additional experts will result in inevitable time and expense, alter their preparation and trial strategy, may require retention of rebuttal experts or expand the scope of their existing experts' anticipated testimony to address the

content of the three new expert witnesses' testimonies, and undermines the settlement evaluation of Plaintiffs' case. (Opp., p. 4:13-16, 5:3-7.)

Trial is set for August 14, 2026, approximately one month from the date of hearing on this motion. Defendants have not offered any showing that the three experts are available immediately for deposition, and even if they are, it is unreasonable to expect Plaintiffs will have the ability, availability, and means through which to schedule, prepare for, and attend three depositions of expert witnesses within a number of weeks, let alone to adequately adjust their trial strategy and prepare for cross-examination and an expanded examination of their own witnesses at trial in light of the testimony and evidence Defendants' three additional experts will present.

The Court also notes that Defendants argue "Dr. Kvitne has been available for deposition since August 25, 2022 and remains available for deposition. Instead of deposing Dr. Kvitne, however, plaintiff filed this Motion to try to get a windfall through exclusion of a critical defense expert," arguing that the Discovery Act is aimed at elimination of gamesmanship and a 'gotcha' theory of waiver. (Motion, p. 6:28-7:5.) It is unclear who Dr. Kvitne is, what motion was filed by Plaintiffs, or how the law relied upon in support of this argument relates to this case.

Furthermore, while the initial trial date was set for approximately five months before the August 14, 2026 trial date, the augmentation sought by Defendants is based on information which was readily available to them well before the initial trial date, and Defendants had sufficient time to identify and designate supplemental expert witnesses.

Accordingly, this Court DENIES Defendants' request to reopen discovery.

While Defendants argue that allowing leave to augment the defense expert witness list would promote a fair trial and assist the jury in evaluating the claimed injuries, it would constitute an abuse of discretion for this Court to rule on this motion and grant leave to amend where no exceptional circumstances exist, where the Court denies Defendants' request to reopen discovery, and where Defendants were not entitled to bring this motion. (See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1571 ["the trial court botched its responsibilities under the Civil Discovery Act and prejudicially abused its discretion in granting" a discovery motion after the discovery cutoff date where the proper considerations were not analyzed and discovery had not been reopened].)

Accordingly, Defendants motion for leave to augment its expert witness list is DENIED.

V. Conclusion

Defendants County of Los Angeles and Steven John Ament Jr.'s Motion for Leave to Augment its Expert Witness List is DENIED.